

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Wasserman	Team: Team # 8	CCRB Case #: 200906997	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 05/06/2009 9:30 PM	Location of Incident: Mackenzie Street and Shore Blvd	18 Mo. SOL 11/6/2010	Precinct: 61		
Date/Time CV Reported Thu, 05/07/2009 10:17 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/07/2009 10:17 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM David Bernal	00688	929714	NARCBBS
2. DT3 Victoria Lafauci	04245	928606	NARCBBS
3. SGT Michael Dannecker	01425	923735	NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Katherine Coyle	21421	934695	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael Dannecker	Abuse: SGT Michael Dannecker stopped § 87(2)(b) and § 87(2)(b)	A . Substantiated
B . DT3 Victoria Lafauci	Abuse: DT Victoria Lafauci stopped § 87(2)(b) and § 87(2)(b)	B . Substantiated
C . POM David Bernal	Abuse: PO David Bernal stopped § 87(2)(b) and § 87(2)(b)	C . Substantiated
D . DT3 Victoria Lafauci	Discourtesy: DT Victoria Lafauci spoke obscenely to § 87(2)(b)	D . Substantiated
E . DT3 Victoria Lafauci	Abuse: DT Victoria Lafauci threatened to arrest § 87(2)(b)	E . Unsubstantiated
F . DT3 Victoria Lafauci	Abuse: DT Victoria Lafauci searched § 87(2)(b)	F . Unsubstantiated
G . POM David Bernal	Discourtesy: PO David Bernal spoke obscenely to § 87(2)(b)	G . Unsubstantiated
H . POM David Bernal	Abuse: PO David Bernal searched § 87(2)(b)	H . Unsubstantiated
I . SGT Michael Dannecker	Abuse: SGT Michael Dannecker threatened to arrest § 87(2)(b)	I . Unsubstantiated
J . DT3 Victoria Lafauci	Abuse: DT Victoria Lafauci searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	J . Substantiated
K . SGT Michael Dannecker	Abuse: SGT Michael Dannecker refused to provide his shield number to § 87(2)(b)	K . Unsubstantiated
L . POM David Bernal	Abuse: PO David Bernal refused to provide his shield number to § 87(2)(b)	L . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed a complaint with the CCRB over the phone on May 7, 2009. On May 6, 2009, at about 9:30 p.m., § 87(2)(b) was sitting in his car on Shore Boulevard near Mackenzie Street in Brooklyn with his friend § 87(2)(b). Three plainclothes officers approached, identified in the course of the investigation as Sergeant Michael Dannecker, Detective Victoria Lafauci and PO David Bernal of Brooklyn South Narcotics. The following allegations resulted.

Allegation A—Abuse of Authority: SGT Michael Dannecker stopped § 87(2)(b) and

§ 87(2)(b)

Allegation B—Abuse of Authority: DT Victoria Lafauci stopped § 87(2)(b) and

§ 87(2)(b)

Allegation C—Abuse of Authority: PO David Bernal stopped § 87(2)(b) and

§ 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation A, Allegation B and Allegation C** be **Substantiated**.

Allegation D—Discourtesy: DT Victoria Lafauci spoke obscenely to § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation D** be **Substantiated**.

Allegation E—Abuse of Authority: DT Victoria Lafauci searched § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation E** be **Unsubstantiated**.

Allegation F—Discourtesy: PO David Bernal spoke obscenely to § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation F** be **Unsubstantiated**.

Allegation G—Abuse of Authority: PO David Bernal searched § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation G** be **Unsubstantiated**.

Allegation H—Abuse of Authority: SGT Michael Dannecker threatened to arrest § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation H** be **Unsubstantiated**.

Allegation I—Abuse of Authority: DT Victoria Lafauci searched the car in which § 87(2)(b)

and § 87(2)(b)

were occupants. § 87(2)(g) it is recommended that **Allegation I** be **Substantiated**.

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§ 87(4-b) § 87(2)(g)

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old white male with brown hair and gray eyes, § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on May 21, 2009 (encl. 7A-7C). § 87(2)(b)
§ 87(2)(b) provided a follow-up statement over the phone on May 29, 2009 (encl. 7H). § 87(2)(g)
§ 87(2)(b)

On May 6, 2009 at about 9:30 p.m., § 87(2)(b) was sitting in his father's car, legally parked on Shore Boulevard near Mackenezie Street in Manhattan Beach, Brooklyn, looking out at the bay. His friend § 87(2)(b) was sitting in the passenger seat, talking on his cell phone. The car is a red Honda S-2000 convertible registered to § 87(2)(b)'s father, with whom he shares a residence and last name. § 87(2)(b) and § 87(2)(b) were not smoking cigarettes, drinking alcohol or doing drugs and the car did not smell of marijuana. The stereo was on quietly, at a volume inaudible to passerby. § 87(2)(b)'s window was rolled down and § 87(2)(b)'s window was up.

After being parked for about ten minutes, § 87(2)(b) saw a 2008 or 2009 silver Nissan Altima drive towards him along Shore Boulevard on the opposite side of the street, then make a u-turn. § 87(2)(b) knew the car was a 2008 or later model based on the kind of taillights it had. The Nissan Altima stopped extremely close to § 87(2)(b) and three plainclothes police officers got out, identified in the course of the investigation as Sergeant Michael Dannecker, Detective Victoria Lafauci and PO David Bernal of Brooklyn South Narcotics. They said, "This is the police!" and approached § 87(2)(b)'s car.

Sgt. Dannecker, the driver, was a 5'11" or 6'0" tall muscular white male who weighed about 180 pounds. Det. Lafauci, who was sitting in the front passenger seat, was a 5'10" white female who weighed about 160 pounds, identified as Det. Lafauci. PO Bernal, who was sitting behind the driver, was a 5'10" slender white male who weighed about 160 pounds.

Sgt. Dannecker approached § 87(2)(b) and asked for his license and registration while PO Bernal approached § 87(2)(b). After § 87(2)(b) complied, Det. Lafauci told him to “get the fuck out” of the car. § 87(2)(b) did not immediately get out of the car but instead asked why he had to exit the car. Det. Lafauci told § 87(2)(b) that he had a “fucking attitude problem.” Det. Lafauci told § 87(2)(b) that if he did not get out of the car, “I’m going to throw you on the floor. I’m going to put handcuffs on you.”

§ 87(2)(b) exited the car. As he was doing so, Det. Lafauci jumped into the car on the driver’s side of the car. Sgt. Dannecker told § 87(2)(b) to go to the back of the car and face away from the car, towards him. § 87(2)(b) also was told to exit the car, but he did so sometime after § 87(2)(b). § 87(2)(b) had a quiet conversation with PO Bernal by the passenger’s side of the car, but § 87(2)(b) could not hear this conversation.

As § 87(2)(b) was standing at the back of the car, with his back facing towards the trunk, he snuck peek back at what was happening through the rear window. He glanced back at what was happening seven or eight times. Sgt. Dannecker told § 87(2)(b) multiple times to look at him and repeatedly threatened to arrest § 87(2)(b) if he turned around to look at what was happening in the car. From what § 87(2)(b) could see, Det. Lafauci was searching the car. He saw her searching the center console, which had been locked. This compartment is opened by the car key, which § 87(2)(b) had left in the ignition as the radio had been on. The center console is located between the two front seats and flips up, so it is visible from the outside when it is open. The car search took about five minutes. At the end of the search, the interior of the car was in disarray and items were strewn everywhere.

After Det. Lafauci had finished searching the car, she came back to where § 87(2)(b) was standing, behind the trunk of the car. Det. Lafauci reached her hand underneath § 87(2)(b)’s red jacket, which covered his jean pockets, and reached into his pant pockets. She reached into his right front pocket, then his right rear pocket, then his left front pocket and then his left rear pocket. She removed his wallet from his rear pocket and searched through its contents, looking at the credit cards. Det. Lafauci then reached into the two exterior pockets and one interior pocket of § 87(2)(b)’s jacket, which was unzipped. Det. Lafauci did not frisk § 87(2)(b) ask for consent or say anything before she went in his pockets.

After Det. Lafauci searched § 87(2)(b) she asked him what he was doing there. He said that he was looking at the bay, as it was a nice day. Det. Lafauci said, “That’s not a legitimate excuse.” § 87(2)(b) replied, “That’s why you’re searching my car illegally?” At some point during this incident, Det. Lafauci called § 87(2)(b) a “smart-ass” and a “tough guy.”

After the search had been completed, Sgt. Dannecker, Det. Lafauci and PO Bernal walked away. As they were walking away, § 87(2)(b) asked all three of them for their shield numbers. He said, “Wait, where are you going? Can I see your badge numbers?” Det. Lafauci put her shield close to § 87(2)(b)’s face, so that he could read it. Det. Lafauci’s shield number was either 4542 or 4245. The other two officers walked away without responding to § 87(2)(b). Based on their proximity, § 87(2)(b) thought all three officers could hear him.

This incident took about ten minutes in total. Neither § 87(2)(b) nor § 87(2)(b) were issued a summons or arrested. No officer ever took § 87(2)(b)’s license and registration to the unmarked car.

§ 87(2)(b) rejected mediation § 87(2)(b)

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old white male with brown hair and green eyes § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on May 21, 2009 (encl. 9A-9C). § 87(2)(g)

While § 87(2)(b) gave similar descriptions of the officers and also described their car as a silver Nissan Altima, he stated that Det. Lafauci was the driver, Sgt. Dannecker was sitting in the back seat and PO Bernal was sitting in the front passenger seat. § 87(2)(b) described Sgt. Dannecker as a muscular white male between 5'9" and 6'0" and 160 to 170 pounds, Det. Lafauci as a 5'9" white female who weighed about 160 pounds and PO Bernal as a slender white male, who was about 5'7" or 5'8" and 155 to 160 pounds.

§ 87(2)(b) corroborated that Det. Lafauci asked § 87(2)(b) to "get the fuck out of the car." § 87(2)(b) also stated that PO Bernal walked over to his door, opened it and asked him to step out of the car three times while he was on the phone. After the third request, § 87(2)(b) hung up his phone and exited the vehicle. PO Bernal asked § 87(2)(b) "What the fuck is your problem? You're talking on the phone, you're disrespecting me."

§ 87(2)(b) stated that he had been talking to his mother and PO Bernal said that he didn't care. PO Bernal told § 87(2)(b) to turn around and put his hands on the trunk. PO Bernal searched § 87(2)(b) against the side of the car. PO Bernal asked § 87(2)(b) if he had anything sharp or any drugs or any guns on him, then stuck his hands into § 87(2)(b)'s pockets and pulled items out. PO Bernal did not pat § 87(2)(b) down before reaching into his pockets.

After PO Bernal searched § 87(2)(b) he had him stand with his hands against the passenger's side of the back trunk. § 87(2)(b) was facing towards the driver's side of the car and could see what was happening inside the car from a diagonal angle. § 87(2)(b) stood behind the driver's side end of the trunk, facing away from the car towards PO Bernal. Det. Lafauci was searching the car. Part of her body was in the car and her knee was on the driver's seat. Det. Lafauci searched underneath the dashboard and in the center console. § 87(2)(b) saw Det. Lafauci take the key from the ignition and open up the center console.

§ 87(2)(b) kept on looking back at what was happening in the car and Sgt. Dannecker repeatedly told him to turn away and face him. Sgt. Dannecker also told § 87(2)(b) to calm down. Sgt. Dannecker might have threatened to arrest § 87(2)(b) at this time, but § 87(2)(b) is not sure. § 87(2)(b) thought an officer threatened to arrest § 87(2)(b) for being a "wise ass".

§ 87(2)(b) repeatedly asked why officers were searching his car. PO Bernal stated § 87(2)(b) needed to relax. § 87(2)(b) was not speaking loudly and was not angry, he was only objecting to his car being searched.

At the time of this incident, § 87(2)(b) asked Det. Lafauci for her badge number but she walked away and told him that if he wanted to find out her badge number, he should go to the 61st precinct. Sgt. Dannecker had his badge out around his neck throughout this incident and PO Bernal presented his badge when initially identifying himself as a police officer. Det. Lafauci had her badge tucked inside her shirt and never showed it to § 87(2)(b) or § 87(2)(b).

NYPD Statements:

Subject Officers: SERGEANT MICHAEL DANNECKER, DETECTIVE VICTORIA LAFAUCI and PO DAVID BERNAL

- Sgt. Dannecker is a § 87(2)(b)-old white male with brown hair and blue eyes § 87(2)(b). PO Bernal is a § 87(2)(b)-old white male with black hair and brown eyes § 87(2)(b). Det. Lafauci is a § 87(2)(b)-old white female with brown hair and blue eyes § 87(2)(b).
- Sgt. Dannecker, Det. Lafauci and PO Bernal worked from about 2:30 p.m. to 11:00 p.m. on May 6, 2009. They were in plainclothes and assigned to the 61st/66th precinct module leader car, which was an unmarked grey Nissan Altima. Det. Lafauci was the arresting officer and has shield no. 4245.

Memobooks

Sgt. Dannecker, Det. Lafauci and PO Bernal did not have any memo book entries regarding this incident. However, Det. Lafauci had a memo book entry indicating that the officers started arrest processing at the 61st precinct at 9:15 p.m. on May 6, 2009 (encl. 10A-10B). Sgt. Dannecker had a memo book entry showing that the officers were processing two arrests at the 61st precinct at 9:30 p.m. on May 6, 2009 (encl. 11A-11B). PO Bernal had a memo book entry indicating that the officers arrived at the 61st precinct at 10:00 p.m. on May 6, 2009 (encl. 12A).

Arrest Reports

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Testimony

Det. Lafauci was interviewed at the CCRB on September 9, 2009 (encl. 10C-10D). Sgt. Dannecker was interviewed at the CCRB on September 18, 2009 (encl. 11C-11D). PO Bernal was interviewed at the CCRB on September 24, 2009 (encl. 12B-12C).

Sgt. Dannecker, Det. Lafauci and PO Bernal did not recall this incident, even after being provided with a synopsis. These officers did not recognize photographs of § 87(2)(b) or § 87(2)(b) and seeing these photos did not refresh their memory.

Witness Officer: PO KATHERINE COYLE

- PO Coyle is a § 87(2)(b)-old white female with brown hair and brown eyes § 87(2)(b).
- PO Coyle worked from 5:30 p.m. on May 6, 2009, to 2:05 a.m. on May 7, 2009. PO Coyle was assigned to the 61st precinct anti-crime squad, in plainclothes and in an unmarked car. PO Coyle did not know her partner or which car she was in and had no memo book entries regarding this.

CCRB Testimony

PO Coyle was interviewed at the CCRB on December 9, 2009 (encl. 13C-13D). PO Coyle had no memo book entries relating to this incident or around the time of this incident (encl. 13A-13B). PO Coyle did not recall this incident, even after being given a synopsis. PO Coyle did not recognize a photo of § 87(2)(b) or § 87(2)(b) and this did not refresh her memory.

The 61st precinct anti-crime team sometimes works in groups of two and sometimes in groups of three. PO Coyle usually works with PO Perrone and PO Dolan, but sometimes works with other officers, including Sgt. Carola.

NYPD Documents

Sprint Index

There was no sprint for this incident (encl. 19A-19C).

UF-250 Logs

There were no UF-250s filled out for this incident according to the computerized stop and frisk report log for the 61st precinct from May 6, 2009 (encl. 20). The 61st precinct did not have any handwritten UF-250s relating to this incident on file (encl. 38Z).

Tactical Plan, NBBS

The tactical plan for the 61st/66th precinct module of Narcotics Brooklyn South during tour 2 on May 6, 2009, shows that they had a set-up on the west end of Shore Boulevard (encl. 23).

Roll Call and Memo Books, 61st Precinct

There were six officers assigned to anti-crime during tour 2 on May 6, 2009: PO Joseph Breder, PO Suzanne Taha, PO Katherine Coyle, PO Matthew Perrone, PO Brendan Dolan and Sgt. Salvator Carola (encl. 24A-24F). There is no notation of what vehicle they are assigned to. PO Taha is an Asian female, PO Coyle is a white female and the other officers are white males.

According to their memo books, PO Taha and PO Breder were working together in auto no. § 87(2)(b) (encl. 15A-15B, 18A-18B). None of the other officers assigned to anti-crime have a notation of their partners or vehicle assignments on this date (encl. 13A-13B, 14A-14B, 16A-16B, 17A-17B). No officer from the 61st precinct anti-crime squad had a memo book entry relating to this incident.

Daily Vehicle Assignment Sheet, 61st PCT

There were three unmarked autos in use by anti-crime during tour 2 on May 6, 2009 (encl. 25). A request to fleet services revealed that auto no. § 87(2)(b) is a grey 2008 Ford Crown Victoria, auto no. § 87(2)(b) is a grey 2008 Chevy Impala grey, and auto no. § 87(2)(b) is a black 2005 Ford Taurus (encl. 38K).

Movement Log and Tactical Plan, BSSI

According to the movement log and tactical plan for Brooklyn South/Staten Island Vice, they were not operating in the 61st precinct during tour 2 on May 6, 2009, nor were there any set-up locations within a mile of this incident location (encl. 27A-27B; encl. 28).

Roll Call, Gang BS

There were no female officers working in Brooklyn South Gang Squad during tour 2 on May 6, 2009 (encl. 29A-29E).

Vehicle List, PBBS AC

Between April 14, 2009, and September 21, 2009, there were six vehicles assigned to Patrol Borough Brooklyn South Anti-Crime. None of these vehicles were grey or silver in color or a Nissan Altima (encl. 30).

Warrant Checks

Neither MISD records nor NYS Police records show any warrant checks conducted on May 6, 2009, for § 87(2)(b) or § 87(2)(b) (encl. 31A-31E).

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) had not filed a Notice of Claim with the City of New York as of January 8, 2010, with regard to this incident (encl. 36A-36B).

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Civilian(s) CCRB History

- This is the second CCRB complaint filed by § 87(2)(b) (encl. 4A). § 87(2)(b)
[REDACTED]
[REDACTED]
- This is the first CCRB complaint filed by § 87(2)(b) (encl. 4B).

Subject Officer(s) CCRB History

- Sgt. Dannecker has been a member of the service for ten years. An abuse of authority—frisk allegation was substantiated against Sgt. Dannecker in case no. 200304950 and he received instructions (encl. 3A).
- Detective Lafauci has been a member of the service for eight years and there are no substantiated CCRB allegations against her (encl. 3B).
- PO Bernal has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 3C).

Conclusion

Identification of Subject Officers

§ 87(2)(b) identified the female subject officer as having shield number 4542 or 4245. Detective Lafauci has shield number 4245. A search of CTS revealed that Det. Lafauci is the only white female officer with a shield number starting with 4 and containing the next three digits “5”, “4” and “2” in any order (i.e., 4245, 4254, 4452, 4425, 4542 or 4524; see: encl. 2A-2F).

The description provided by § 87(2)(b) and § 87(2)(b) of the officers was generally consistent with the pedigree information of Sgt. Dannecker, Det. Lafauci and PO Bernal. Moreover, they both identified the car that the officers were driving as a grey Nissan Altima. While § 87(2)(b) was unable to recognize any subject officers in a photo array nearly seven months after this incident and § 87(2)(b) refused to come to the CCRB to view a photo array, this does not negate the accuracy of their earlier descriptions.

Although Sgt. Dannecker, Det. Lafauci and PO Bernal denied any involvement in this incident, Det. Lafauci made an arrest about nine blocks away from the incident location on Shore Boulevard at 8:30 p.m., an hour before § 87(2)(b) stated that this incident occurred. The memo books of Sgt. Dannecker, Det. Lafauci and PO Bernal indicate that they arrived at the 61st precinct sometime between 9:15 p.m. and 10:00 p.m., but § 87(2)(b) may have been mistaken as to the time of this incident.

The arrest index for the 61st precinct shows that only the 61st precinct, the 61st precinct detective squad and Brooklyn South narcotics made arrests on May 6, 2009 (encl. 32A). Document requests were able to rule out all other plainclothes commands that might have been active in the 61st precinct from being involved in this incident for the following reasons (see table below). Brooklyn South Gang Squad did not have any female officers working at the time of this incident. Patrol Borough Brooklyn South Anti-Crime did not have any vehicles similar to a grey Nissan Altima. Brooklyn South/Staten Island Vice was not active in the 61st precinct. While the 61st precinct anti-crime squad had vehicles which could have been mistaken for a grey Nissan Altima and a white female officer who was working at the time of this incident, they had six officers on duty and three vehicles signed out. Although these officers’ memo books and the roll call do not make clear who was working with whom, it can be logically inferred that there were only two officers assigned to each car.

	Female	Shield #	Male #1	Male # 2	Active in 61st PCT	Vehicle
Info	White female,	4542 or	Muscular	Slender	Yes	Grey

provided by c/v	5'9" or 5'10", 160 lbs	4245	white male, 5'9" to 6'0", 160-180 lbs	white male, 5'7" to 5'10", 155-160 lbs		Nissan Altima
Brooklyn South Narcotics	Det. Lafauci, white female, § 87(2)(b)	4245	Sgt. Dannecker, white male, § 87(2)(b) lbs	PO Bernal, white male, § 87(2)(b) lbs	Yes	Grey Nissan Altima
61 st PCT anti-crime squad	PO Coyle, white female, § 87(2)(b)	21421	Sgt. Carola, PO Perrone or PO Dolan (all white males)	Only two officers per car	Yes	Grey Ford Crown Victoria or grey Chevy Impala
Gang BS	No female officers	N/A	N/A	N/A	N/A	N/A
PBBS AC	N/A	N/A	N/A	N/A	N/A	No grey vehicles or Nissan Altimas
Vice BSSI	N/A	N/A	N/A	N/A	No	N/A

As Det. Lafauci, Sgt. Dannecker and PO Bernal were in the vicinity of this incident on the night of May 6, 2009, and match the descriptions provided, Det. Lafauci was identified by shield number and document requests were able to rule out officers from all other plainclothes commands, they have been identified as the subject officers for this incident. Det. Lafauci has been identified as the female officer, Sgt. Dannecker has been identified as the taller, muscular male officer, PO Bernal has been identified as the shorter, slim male officer and all allegations have been pled accordingly. As these officers stated that they did not recall this incident, the stop and failure to prepare stop and frisk reports have been pled against all officers involved.

Investigative Findings and Recommendations

Allegations Not Pled

§ 87(2)(g)
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Allegation A—Abuse of Authority: SGT Michael Dannecker stopped § 87(2)(b) and § 87(2)(b)

Allegation B—Abuse of Authority: DT Victoria Lafauci stopped § 87(2)(b) and § 87(2)(b)

Allegation C—Abuse of Authority: PO David Bernal stopped § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both stated that officers came up to them while they were sitting in a car, asked them to exit the car and subsequently searched their persons and the vehicle. Sgt. Dannecker, Det. Lafauci and PO Bernal denied recalling this incident when interviewed between four and five months after this incident. § 87(2)(g)

To forcibly stop an individual, officers require a reasonable suspicion that criminality is afoot (encl. 1A). People v. DeBour, 40 N.Y.2d 210 (1976). In People v. Mobley, the Bronx Supreme Court found that officers could not lawfully approach a legally parked vehicle solely because it was in a high-crime area (encl. 1B-1E). People v. Mobley, 841 N.Y.S.2d 827 (2007). § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation A**, **Allegation B** and **Allegation C** be **Substantiated**.

Allegation D—Discourtesy: DT Victoria Lafauci spoke obscenely to § 87(2)(b)

As § 87(2)(b) and § 87(2)(b) stated that Det. Lafauci told § 87(2)(b) to “get the fuck out of the car” and no officer disputed this, it is therefore recommended that **Allegation D** be **Substantiated**.

Allegation E—Abuse of Authority: DT Victoria Lafauci searched § 87(2)(b)

§ 87(2)(b) stated that Det. Lafauci searched his person, reaching into his pockets. § 87(2)(b) made no mention of this search. § 87(2)(g) it is therefore recommended that **Allegation E** be **Unsubstantiated**.

Allegation F—Discourtesy: PO David Bernal spoke obscenely to § 87(2)(b)

§ 87(2)(b) stated that PO Bernal asked him “What the fuck is your problem?” § 87(2)(b) stated that he did not hear the conversation between § 87(2)(b) and PO Bernal. § 87(2)(g) it is therefore recommended that **Allegation F** be **Unsubstantiated**.

Allegation G—Abuse of Authority: PO David Bernal searched § 87(2)(b)

As § 87(2)(b) did not corroborate this allegation, it is therefore recommended that **Allegation G** be **Unsubstantiated**.

Allegation H—Abuse of Authority: SGT Michael Dannecker threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that Sgt. Dannecker threatened to arrest him multiple times for attempting to look back and observe the vehicle search. § 87(2)(b) stated that Sgt. Dannecker told § 87(2)(b) to look away from the car multiple times and may have threatened to arrest § 87(2)(b)

